

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2026PRTR058712: IN RE THE KAVEH FAMILY TRUST

06/24/2026 in Department J6

Demurrer to the Complaint-Petition

The Court intends to overrule the demurrer.

At the 3/11/26 hearing, the Court found that Petitioner had provided appropriate proof of service for Respondent. Accordingly, the demurrer's argument that Respondent was never served with a copy of the petition has already been decided against him.

Prior to the filing of a demurrer, the demurring party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a).) The current demurrer fails to allege or demonstrate that this occurred.

A demurrer must be filed within 30 days after service of the petition. (Code Civ. Proc., § 430.40.) Here, Respondent was served with the petition on 1/26/26. The demurrer was filed on 4/3/26, more than 30 days after 1/26/26. Thus, it is untimely.